

**Before the
FEDERAL MARITIME COMMISSION**

DOCKET NO. 24-08

**Impact Products, LLC and Safety Zone, LLC
v.
Orient Overseas Container Line Limited and OOCL (Europe) Limited**

CONSENT MOTION FOR STAY

Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited (“Respondents” or “OOCL”) hereby move pursuant to FMC Rules 69(g) and 71, 46 C.F.R. 502.69(g), 46 C.F.R. 502.71, to stay this proceeding for good cause as set forth in the memorandum in support of motion below. Counsel for Respondents have conferred with counsel for nominal Complainants Impact Products, LLC (“Impact Products”) and Safety Zone, LLC (“Safety Zone”) (collectively “Complainants”), who consent to this Motion to Stay.

MEMORANDUM IN SUPPORT OF MOTION

On May 21, 2024, Complainants (along with their associated companies Supply Source Enterprises, Inc., SSE Intermediate, Inc., and SSE Buyer, Inc.) petitioned for bankruptcy before the U.S. Bankruptcy Court for the District of Delaware, case No. 24-11054 (BLS). On August 8, 2024, the Debtors in that proceeding submitted a Joint Chapter 11 Plan of Liquidation. It appears that a third party, TZ SSE Buyer LLC, has or may have purchased the assets of the debtor-in-bankruptcy.

In light of the foregoing, Complainants are no longer real parties-in-interest in this proceeding. Instead, the real-party-in-interest is TZ SSE Buyer LLC, the apparent purchaser of Complainants’ assets, including Complainants’ claims in this proceeding. Nor has the real party-

in-interest yet appeared or asked to be named as a substitute complainant. There is thus no way for Respondents (or the Presiding Officer) to know whether this proceeding will go forward (and if so, on what terms) or be terminated. Respondents have sought clarification from counsel for the nominal Complainants but have heard nothing but radio silence. Respondents' discovery responses and production are due by next Wednesday, September 5, 2024. Until such time as clarity exists as to the real party-in-interests' intentions, Respondents request a temporary stay of proceedings, or at least an extension of the discovery deadline while the issue of whether this action will proceed is sorted out and a protective order is in place to protect against the disclosure of confidential information.

Moreover, it does not appear that this uncertainty has been resolved in the several other proceedings brought by the now-defunct Complainants in matters pending before various Administrative Law Judges at the FMC, including Docket No. 24-06, *Impact v. Lihua*; Docket No. 24-07, *Impact v. CMA CGM*; Docket No. 24-09, *Impact v. COSCO*; and 24-10, *Impact v. Yang Ming*.

In view of this substantial uncertainty, Respondents request the Presiding Officer to issue a temporary stay of the proceedings until nominal Complainants (or the real-party-in interest) inform the Presiding Officer whether the proceeding will go forward, and if it will move to substitute parties. If TZ SSE Buyer LLC decides to proceed with the matter, Respondents will work with TZ SSE Buyer LLC to propose a schedule for completion and a protective order to protect against the disclosure of confidential information. If TZ SSE Buyer LLC decides not to go forward, both the Presiding Officer and Respondents will be spared any further cost/burden. To avoid an indefinite stay without word from nominal Complainants or TZ SSE Buyer LLC,

Respondents state that they will move to dismiss for failure to prosecute if Complainants/TZ SSE Buyer LLC have not acted within 30 days after the date the stay is issued.

CONCLUSION

For the foregoing reasons, good cause exists for the Presiding Officer to issue an order temporarily staying the matter and all deadlines therein until the matter has been clarified by Complainants/TZ SSE Buyer LLC.

DATED: August 28, 2024

Respectfully submitted,

/s/ Rebecca A. Fenneman

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**ATTORNEYS FOR RESPONDENTS,
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(Europe), Ltd.**

CERTIFICATE OF SERVICE

I certify that on the 28th day of August, 2024, a true and correct copy of the foregoing **MOTION TO STAY** was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

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